

No. 1, 2. *Ecclesiastical Commissioners* 18 & 19 GEO. 5.
(*Provision for Unbeneficed Clergy*) Measure, 1928.

(v) is approved by the Ecclesiastical Commissioners as a recipient of such further provision upon the recommendation of the bishop of the diocese in which he holds a curacy or performs ecclesiastical duty, and also by such diocesan body or authority (if any) as may be prescribed.

(2) The making of further provision for any unbeneficed clerk under this Measure shall be in the discretion of the Ecclesiastical Commissioners, who shall, in the exercise of such discretion, have regard to the personal needs and services of the clerk.

(3) In this Measure the expression "prescribed" means prescribed by schemes or regulations made hereunder by the Ecclesiastical Commissioners.

Short title.

2. This Measure may be cited as the Ecclesiastical Commissioners (Provision for Unbeneficed Clergy) Measure, 1928.

No. 2.

A MEASURE passed by the National Assembly
of the Church of England

To regulate the administration of the trusts affecting tithe rent-charge and other rent-charges, rents and payments in lieu of tithe vested in Queen Anne's Bounty in trust for incumbents of benefices, and for purposes connected therewith. [3rd August 1928.]

Measure to
affect
certain
beneficial
interests in
tithe rent-
charge, &c.
15 & 16
Geo. 5. c. 87.

1.—(1) Subject to the provisions of this Measure, this Measure shall apply to the beneficial interests of incumbents of benefices and other persons for the time being entitled to receive the emoluments of benefices in—

- (i) tithe rent-charge vested in Queen Anne's Bounty under section three of the Tithe Act, 1925, and
- (ii) rent-charges, rents, tithes and other payments vested in Queen Anne's Bounty under section fourteen of the Tithe Act, 1925;

and the incumbents and other persons entitled to such beneficial interests are in this Measure referred to collectively as the beneficiaries.

(2) Subject to the express provisions of this Measure as to the mode of enjoyment of the beneficial interests to which this Measure applies, nothing contained in this Measure shall affect the nature, amount or duration thereof or the common law or any enactment relating either to tithe rent-charge or to the rent-charges, rents, tithes and other payments to which section fourteen of the Tithe Act, 1925, applies.

(3) This Measure shall not apply to the beneficial interest in any tithe rent-charge, rent, tithe or other payment which for the time being is not collected through a committee for a collection area constituted under section ten of the Tithe Act, 1925.

2.—(1) Subject to the provisions of this Measure, Queen Anne's Bounty shall, after this Measure has come into operation, make in respect and on account of the beneficial interests in tithe rent-charge to which this Measure applies quarterly payments to the beneficiaries respectively interested in the same.

Quarterly payments to be made on account of beneficial interests in tithe rent-charge.

(2) Such quarterly payments shall be made on the first days of January, April, July and October in each year, but so that the first payment shall be made on either the first day of April or the first day of October, whichever shall first occur after the appointed day.

(3) The quarterly payments made on the first days of April and July in any year shall be in respect of the tithe rent-charge payable on the first day of April in that year, and the quarterly payment made on the first day of October in any year shall, together with the quarterly payment made on the following first day of January, be in respect of the tithe rent-charge payable on such first day of October.

3.—(1) Subject to any necessary apportionment, the amount of any quarterly payment to a beneficiary in respect of his beneficial interest in tithe rent-charge shall be one-half of such a sum as is estimated by Queen Anne's Bounty to be equal to such portion of the half-year's tithe rent-charge in respect of which the payment is made as will be available for actual payment to the beneficiary.

Mode of ascertaining amounts of quarterly payments.

(2) Provided that—

- (i) Queen Anne's Bounty shall have power to deduct from any tithe rent-charge any principal money and interest due to Queen Anne's Bounty under any mortgage or charge made under the Acts specified in the Schedule to this Measure or any of them and affecting such tithe rent-charge;
- (ii) deductions, which under the Ecclesiastical Dilapidations Measure, 1923, the Clergy Pensions Measure, 1926, and any amendment thereof respectively, or under any other Measure, are required or authorised to be made from monies payable by Queen Anne's Bounty may be made, in any case where such monies are payable to a beneficiary, either from tithe rent-charge or from other monies payable by Queen Anne's Bounty to such beneficiary, as Queen Anne's Bounty may determine; and
- (iii) Queen Anne's Bounty shall have power for the purpose of any estimate made by Queen Anne's Bounty under this section to treat any deduction required or authorised to be made from tithe rent-charge as wholly or partially postponed or anticipated, and so that—

(a) where any deduction is postponed, it shall, to the extent to which it is postponed, instead of being made from the half-year's tithe rent-charge from which it would have been made if it had not been postponed, be made (subject to the provisions of this Measure) from such subsequent instalments of the tithe rent-charge attached to the benefice concerned as Queen Anne's Bounty may determine;

(b) where any deduction is anticipated, it shall not be anticipated to any greater extent than will effect the deduction from any half-year's tithe rent-charge of so much of any sum admitting of deduction as accrued during a period terminating not

later than the period during which such half-year's tithe rent-charge accrued; and

(c) Queen Anne's Bounty shall, as between Queen Anne's Bounty and the beneficiary concerned, but not otherwise, have power to determine during what period any sum which admits of deduction by anticipation under this subsection is to be deemed to have accrued in any case where this is not already provided for by the existing law.

4. Queen Anne's Bounty shall apply the system of quarterly payments in respect and on account of the beneficial interests in tithe rent-charge established by this Measure to the beneficial interests to which this Measure applies in the rent-charges, rents, tithes and other payments vested in Queen Anne's Bounty under section fourteen of the Tithe Act, 1925, with such variations as the dates of payment and special character of any such rent-charge, rent, tithe or other payment may require.

Quarterly
payments on
account of
other
beneficial
interests.

5.—(1) Queen Anne's Bounty shall have power—

Revision
and adjust-
ment of
quarterly
payments.

(i) to revise generally, and at any period in the year as circumstances may require, any estimate made by Queen Anne's Bounty under this Measure for the purpose of ascertaining the amount of any quarterly payment payable to a beneficiary; and

(ii) to adjust any over-payment or under-payment made in respect of any beneficial interest to which this Measure applies by making such deductions from or additions to any quarterly payment payable to the beneficiary who has received the over-payment or the under-payment as Queen Anne's Bounty may think necessary.

(2) In any case where by reason of the avoidance of a benefice or for any other reason such over-payments or under-payments cannot be fully adjusted under the foregoing provisions of this section, the balance due to Queen Anne's Bounty or to the beneficiary, as the case may be, shall be recoverable as a debt from the beneficiary or his estate, or from Queen Anne's Bounty, as the case may be.

(3) In any case where such a balance as aforesaid is due to Queen Anne's Bounty, and any monies are payable by Queen Anne's Bounty to the beneficiary from whom the balance is due, Queen Anne's Bounty may, to such extent as may be required, retain such monies and apply the same in satisfaction of the said balance.

Determina-
tion of
questions.

6. For the purpose of this Measure, Queen Anne's Bounty shall appoint an appeal committee consisting of such of the Governors as Queen Anne's Bounty may determine, and without prejudice to any other remedy a beneficiary shall be entitled to require that any question which may arise in connection with the application to the beneficial interest of such beneficiary of the system of quarterly payments established by this Measure shall be determined by such appeal committee.

Tithe
Revenue
Account

7.—(1) Queen Anne's Bounty shall establish a special account to be known and hereinafter referred to as the Tithe Revenue Account, into which shall be paid—

- (i) all monies received by Queen Anne's Bounty from committees constituted under section ten of the Tithe Act, 1925, in respect of tithe rent-charge, rent-charges, rents, tithes and other payments vested in Queen Anne's Bounty in trust for the beneficiaries;
 - (ii) any monies representing any loan made to Queen Anne's Bounty for the purposes of this Measure by the Ecclesiastical Commissioners or other lender; and
 - (iii) any monies representing the interest upon or the income of any funds for the time being standing to the credit of the Tithe Revenue Account.
- (2) Out of the Tithe Revenue Account there shall be paid or transferred—
- (i) all amounts properly payable or transferable out of the Tithe Revenue Account to persons other than the beneficiaries or to any fund;
 - (ii) any payments which are required to meet the interest upon any loan made for the purposes of this Measure and any principal requiring to be repaid; and
 - (iii) the payments to the beneficiaries provided for by this Measure.

8. Queen Anne's Bounty shall have power from time to time to borrow such monies as shall be required for the purposes of this Measure, and to secure the monies borrowed and the interest thereon by a charge on the Tithe Revenue Account, but so that no such borrowing or charge shall impose any liability on any property or monies vested in or held by Queen Anne's Bounty other than the Tithe Revenue Account.

Power of
Queen
Anne's
Bounty to
borrow.

9.—(1) The Ecclesiastical Commissioners shall have the following powers, namely:—

Powers of
Ecclesias-
tical Com-
missioners.

- (i) Power from time to time to lend to Queen Anne's Bounty for the purposes of this Measure upon the security of a charge upon the Tithe Revenue Account such monies forming part of their Common Fund, or arising from securities and investments the income of which is paid into their Common Fund as they may deem expedient;
- (ii) Power from time to time to guarantee to any lender other than the Ecclesiastical Commissioners making a loan to Queen Anne's Bounty for the purposes of this Measure the repayment of such loan and the interest thereon; and
- (iii) Power to secure any guarantee given by the Ecclesiastical Commissioners under this section by a charge upon their Common Fund revenues and properties or any part thereof respectively, but so that any such charge shall not prevent the Ecclesiastical Commissioners from dealing with their Common Fund revenues and properties as absolute owners free from any incumbrance, and shall not affect any property in the hands of a transferee from the Ecclesiastical Commissioners whether for value or not, but in the case of transfer for value shall shift to the money or property which is the consideration for the transfer.

(2) The Ecclesiastical Commissioners shall exercise the powers conferred on them by this section in such manner as will enable the system of quarterly payments to beneficiaries established by this Measure to be set on foot, and, subject to the provisions of this Measure, to be continued.

Determina-
tion or sus-
pension of
system of
quarterly
payments.

10. Queen Anne's Bounty and the Ecclesiastical Commissioners shall respectively have power to suspend for any period or to determine at any time the system of quarterly payments to beneficiaries established by this Measure, but such power shall only be exerciseable by the Ecclesiastical Commissioners by a notice in writing served on Queen Anne's Bounty and requiring Queen Anne's Bounty to suspend or determine the said system at the expiration of one year from the service of the notice.

Winding up.

11. Upon the determination of the system of quarterly payments to beneficiaries established by this Measure the Tithe Revenue Account shall be wound up, and for the purposes of such winding up the Ecclesiastical Commissioners shall make such advances under the power in that behalf conferred on them by this Measure as shall be sufficient to provide for the discharge of the liabilities of the Tithe Revenue Account, such advances being made upon the footing that as between Queen Anne's Bounty and the Ecclesiastical Commissioners no liability for any deficiency of the Tithe Revenue Account is to fall upon any property or monies vested in or held by Queen Anne's Bounty other than the Tithe Revenue Account.

Tithe Act,
1925,
section
eleven.

12. Notwithstanding the provisions of section eleven of the Tithe Act, 1925, no scheme under that section shall be framed or come into operation until such time as Queen Anne's Bounty deems expedient, and Queen Anne's Bounty may exclude from the operation of any such scheme any tithe rent-charge, rent-charge, rent, tithe or other payment which for the time being is not collected through a committee for a collection area constituted under section ten of the Tithe Act, 1925.

Regulations.

13.—(1) Queen Anne's Bounty shall have power to make regulations as to the manner in which the powers conferred on Queen Anne's Bounty shall be exercised, and generally for the purpose of carrying this Measure into effect.

(2) Any regulations made by Queen Anne's Bounty under this section shall be laid before the Church Assembly.

Proof of
regulations.

14. Evidence may be given of any regulations made by Queen Anne's Bounty under this Measure or the Tithe Act, 1925, by producing a copy thereof sealed with the common seal of Queen Anne's Bounty, or certified to be

a true copy under the hand of the Treasurer for the time being of Queen Anne's Bounty.

15.—(1) This Measure shall come into operation on the appointed day. Commence-
ment

(2) The appointed day shall be such day not later than three months after the passing of this Measure as Queen Anne's Bounty may determine.*

(3) The determination by Queen Anne's Bounty of the appointed day shall be notified by advertisement in the "London Gazette."

16. In this Measure the expressions "tithe rent-charge" and "benefice" have the same meanings as in the Tithe Act, 1925. Interpreta-
tion.

17. This Measure may be cited as the Tithe (Administration of Trusts) Measure, 1928 Short title.

SCHEDULE.

Section 3.

The Clergy Residences Repair Act, 1776.

The Clergy Residences Repair Act, 1780.

The Clergy Residence Act, 1826.

The Parsonages Act, 1838.

The Parsonages Act, 1865.

The Loans (Incumbents of Benefices) Amendment Act, 1918.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England

To amend the Clergy Pensions Measure, 1926.

[3rd August 1928.]

1. Subsection (1) of section one of the Clergy Pensions Measure, 1926 (in this Measure referred to as the "principal Measure"), shall have effect and shall be deemed always to have had effect as if the following paragraph were substituted for paragraph (h) (that is to say):— Extension
of scope
of Clergy
Pensions
Measure,
1926.

“(h) Such other clerks in Holy Orders licensed under seal by diocesan bishops and engaged in

* The day thus determined was September 30, 1928: see "London Gazette," August 14, 1928, p. 5445.